PROFESSIONAL ENGINEERING SERVICES AGREEMENT

This Professional Engineering Services Agreement is between Riverbend Engineering Group, LLC ("Engineer") and the client named on the signature page ("Client"). Engineer will perform the structural engineering services described in the attached proposal.

1. Services. Engineer will provide the services described in each statement of work signed by the parties (each, an "SOW"). Each SOW is incorporated into this Agreement by reference. If this Agreement conflicts with an SOW, this Agreement controls unless the SOW expressly identifies the provision of this Agreement it modifies. Engineer may use employees and approved subcontractors to perform the Services and remains responsible for their work.

2. Client Responsibilities. Client will provide timely access to the information, personnel, systems and premises reasonably required for Engineer to perform the Services, and is responsible for the accuracy and completeness of all information it provides. Delays caused by Client's failure to meet these responsibilities may extend the schedule and may result in additional fees at Engineer's then-current rates.

3. Fees and Payment. Client will pay the fees set out in the applicable SOW. Unless an SOW states otherwise, Engineer will invoice monthly in arrears and each invoice is due within thirty (30) days of its date. Late amounts accrue interest at the lesser of one percent (1%) per month or the highest rate permitted by law. Engineer may suspend the Services on ten (10) days' written notice if an undisputed invoice remains unpaid more than thirty (30) days after its due date.

4. Expenses. Client will reimburse reasonable, pre-approved travel and out-of-pocket expenses incurred in performing the Services. Expenses are billed at cost, without markup, and are supported by receipts on request.

5. Term and Termination. This Agreement begins on the Effective Date and continues until terminated as provided here. Either party may terminate this Agreement or any SOW for convenience on thirty (30) days' written notice. Either party may terminate immediately on written notice if the other party materially breaches this Agreement and does not cure the breach within fifteen (15) days after receiving notice describing it. On termination, Client will pay for all Services performed and expenses incurred through the effective date of termination.

6. Confidentiality. Each party may receive non-public information of the other party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving party will use Confidential Information only to perform or receive the Services, will protect it with at least reasonable care, and will disclose it only to its personnel and advisors who need to know it and are bound by duties of confidentiality at least as protective as these. These obligations do not apply to information that is or becomes public through no fault of the receiving party, was known to it before disclosure, is independently developed, or is rightfully received from a third party without restriction. A party may disclose Confidential Information when required by law, after giving the other party prompt notice where legally permitted.

7. Intellectual Property. Upon full payment, Client owns the final deliverables identified in an SOW as created specifically for Client (the "Deliverables"). Engineer retains all rights in its pre-existing materials, tools, templates, know-how and general skills ("Engineer Materials"). To the extent any Engineer Materials are incorporated into a Deliverable, Engineer grants Client a non-exclusive, perpetual, royalty-free license to use them as part of that Deliverable for Client's internal business purposes.

8. Warranties. Engineer warrants that the Services will be performed in a professional and workmanlike

manner consistent with generally accepted industry standards. Client's exclusive remedy for breach of this warranty is re-performance of the non-conforming Services, provided Client notifies Engineer in writing within thirty (30) days after the Services were performed.

9. Limitation of Liability. IN NO EVENT WILL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL OR PUNITIVE DAMAGES, OR FOR LOST PROFITS OR REVENUE, EVEN IF ADVISED OF THEIR POSSIBILITY. EACH PARTY'S TOTAL LIABILITY ARISING OUT OF THIS AGREEMENT WILL NOT EXCEED THE FEES PAID OR PAYABLE UNDER THIS AGREEMENT IN THE TWELVE (12) MONTHS BEFORE THE EVENT GIVING RISE TO THE CLAIM. THESE LIMITS DO NOT APPLY TO A PARTY'S INDEMNIFICATION OBLIGATIONS OR TO CLIENT'S OBLIGATION TO PAY FEES.

10. Indemnification. Each party will defend and indemnify the other party and its officers, employees and agents against third-party claims, and the resulting losses, damages and reasonable attorneys' fees, to the extent arising from the indemnifying party's gross negligence, willful misconduct or violation of law. The indemnified party will give prompt notice of the claim, reasonable cooperation, and sole control of the defense to the indemnifying party.

11. Insurance. During the term Engineer will maintain commercial general liability insurance and professional liability insurance with limits not less than one million dollars ($1,000,000) per claim, and will provide certificates of insurance on request.

12. Governing Law. This Agreement is governed by the laws of the State of Delaware, without regard to its conflict of laws rules. The parties submit to the exclusive jurisdiction of the state and federal courts located in Wilmington, Delaware for any dispute arising out of this Agreement.

13. Miscellaneous. This Agreement, together with each SOW, is the entire agreement between Engineer and Client regarding its subject matter and supersedes all prior proposals and understandings. Any amendment must be in writing and signed by both parties. If any provision is held unenforceable, the remaining provisions remain in effect. Neither party may assign this Agreement without the other party's consent, except to a successor in a merger or sale of substantially all of its assets. This Agreement may be executed in counterparts and by electronic signature, each of which is deemed an original.

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